

4. **S-CV-0051202 Khachadourian, Gilbert Jr. v. Cook, Richard Noah**

Defendants Richard Noah Cook and Mary Melody Cook's Motion for Protective Order and Order Requiring Return of Privileged Documents

The Cook defendants move for a protective order preventing the deposition of third party Bob Eynck, on the grounds that any potential testimony of Mr. Eynck falls within the attorney-client privilege and work product protections. The Cook defendants further seek protective orders related to certain documents produced by Jeppson Law, LLP and California Watershed Engineering, Corporation ("CWE"), which the Cook defendants contend are privileged attorney-client communications.

As a preliminary matter, just weeks ago the court denied a motion by the Cook defendants to quash the deposition subpoena issued to Mr. Eynck and granted plaintiffs' motion to compel the deposition. (See Ruling on Submitted Matter, filed July 15, 2026.) The court considered the Cook defendants' assertions of privilege but found the privileges had been waived. (Id.) The court found no privilege applied to Bob Eynck's reports and other documents related to the flooding and drainage issues surrounding the property at issue in 2017 and ordered Mr. Eynck to appear and provide deposition testimony within seven days. (Id.) The current motion in large part seeks reconsideration of the court's recent ruling, without compliance with Code of Civil Procedure section 1008, and to that extent is denied.

Significantly, the court previously expressly considered and rejected arguments made by the Cook defendants, noting:

... defendants meet their initial burden that the email correspondence between their former counsel of record [Eric Jeppson], Bob Eynck, and defendant Richard Cook are subject to the attorney-client and attorney work product privilege. Plaintiffs thereafter meet their burden to establish defendants waived their privileges when defendant Richard Cook did not object to the privileged materials being introduced and discussed at his deposition. (Evid. Code, § 912.) Nor is a protective order proper given the privileges have been waived.

(July 15, 2026 ruling at pg. 2.)

While the court's prior ruling identified particular exhibits discussed at the deposition of Richard Cook, the ruling was based on the specific finding of a waiver of privileges as to Bob Eynck's reports and other documents related to flooding and drainage at the property in 2017. Given this finding, the present motion lacks merit.

Defendants' motion is denied in its entirety. The parties' respective requests for sanctions are denied.

Plaintiffs' Motion to Compel as to Defendant Verdera Community Association

Plaintiffs move to compel defendant Verdera Community Association: 1) to produce, without redactions, the Design Review Committee meeting minutes Bates-stamped Verdera 001368 through Verdera 001697, together with any other responsive Design Review Committee agendas and minutes that Verdera has withheld or redacted in whole or in part; and 2) to designate and produce a person most qualified to testify regarding the 2016 revision of Verdera's Design Review Guidelines-including the circumstances of, the persons involved in, and the reason for the revisions-at further deposition to be completed within 5 days. (Pls. Corrected Notice & Mot. Compel at 2.) Plaintiffs bring this motion pursuant to Code of Civil Procedure sections 2031.310, 2031.320, 2025.230 and 2025.450. (Pls. Corrected Notice & Mot. Compel at 2.)

The Design Review Committee minutes for the years 2013 to 2022 and accompanying privilege log were provided to plaintiffs on June 12, 2026, with redactions. (See Decl. of BG at ¶ 13.) On June 17, 2026, defendant served the DRC minutes for the years 2023 to 2026 with accompanying updated privilege log and similar redactions to those for 2013 to 2022. (See Decl. of BG at ¶ 18.) Plaintiffs' motion is timely brought under both Code of Civil Procedure section 2031.310(c) and 2031.320.

Plaintiffs' motion to compel production of unredacted Design Review Committee minutes is granted. The parties are ordered to meet and confer in good faith regarding an appropriate protective order to address any third party privacy concerns related to production of the unredacted minutes. Defendant shall produce the subject documents within five days of service of notice of entry of the court's order.

Plaintiffs' motion to compel Verdera to designate and produce a person most qualified is also granted. Defendant shall designate and produce a person most qualified to testify regarding the subjects identified in plaintiffs' motion within five days of service of notice of entry of the court's order.

Plaintiffs' request for monetary sanctions is granted. (Code Civ. Proc. § 2025.450(g)(1).) Plaintiffs are awarded sanctions in the amount of \$1,260 from defendant Verdera Community Association and its counsel of record, jointly and severally.

Plaintiffs' ex parte application for: (1) an order compelling immediate production of defendants' experts' files; (2) an order requiring depositions of defendants' designated expert witnesses to proceed on dates purportedly agreed to by defendants; and (3) an order permitting plaintiffs' experts to be deposed after the expert-discovery cutoff

Plaintiffs request emergency relief from the court related to expert witness discovery. First, plaintiffs request the court order defendants to immediately produce its expert witnesses' files pursuant to Code of Civil Procedure section 2034.415. This request is denied as section 2034.415 requires production of the files three business days prior to the expert witness's deposition and plaintiffs fail to demonstrate any violation of the

statute as it does not appear that any such depositions proceeded prior to the filing of the application.

Second, plaintiffs request the court order that the depositions of defendants' experts proceed on dates which were previously offered by defendants. This request is denied as it is unsupported by statutory authority. Plaintiffs' request to permit plaintiffs' expert depositions to proceed after the expert discovery cutoff date is likewise denied. The court notes that scheduling issues such as those raised by the application can and should be resolved through good faith meet and confer and compromise between counsel. Counsel are reminded of their obligations in that regard.

5. S-CV-0051782 American Express NB v. Rode, Leon

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion to Enforce Settlement

Plaintiff moves to set aside dismissal and enter judgment on stipulation pursuant to Code of Civil Procedure section 664.6 in the amount of \$30,039.81 in principal damages plus costs of \$655 for a total judgment of \$30,694.81. Defendants have not filed any opposition.

The unopposed motion is granted. (Code Civ. Proc., § 664.6.) The dismissal entered May 21, 2024 is hereby set aside and judgment is entered for plaintiff as against defendants in the amount of \$30,694.81 (\$30,039.81 in principal damages and costs of \$655).

6. S-CV-0052333 Ivancich, Larry v. Safeway Inc.

Defendant's Motion to Compel Further Response to Special Interrogatory No. 62

Defendant moves to compel further response to special interrogatory no. 62. Plaintiff opposes the motion.

The court notes defendant failed to comply with Code of Civil Procedure 3.1345 (a)(2) by failing to provide a separate statement in support of its motion to compel further response to special interrogatory no. 62.

The court admonishes defendant on its failure to strictly adhere to Code of Civil Procedure 3.1345 (a)(2). However, as defendant reproduced the entirety of special interrogatory no. 62 and plaintiff's response in its moving papers, the court will review the merits.

By filing the subject lawsuit which seeks recovery for personal injuries and general damages, plaintiff put his medical condition at issue in the case. The request for medical treatment sought by special interrogatory no. 62 is limited to the timeframe of March 1,